

Marc Chesson, *et al.* v. Knight & Day Investments, Inc., *et al.*

18CV43298

MOTION TO CONTINUE TRIAL DATE

Defendant Paul M. Zagaris Inc. dba PMZ Real Estate and Cross-Defendant Martina Owens (collectively PMZ) move, pursuant to California Rules of Court, rule 3.1332, for an order vacating and continuing the dates set for trial and pre-trial readiness conference in the matter, along with all related dates and deadlines.

One basis for the motion relates to the potential addition of new parties through an amended cross-complaint. However, the motion for leave to file that amended cross-complaint is not on calendar until September 17, 2021. The Court is unavailable to hear the motion for leave to file the amended cross-complaint on that date.

For the foregoing reasons, the present motion to continue trial and the motion for leave to file an amended cross-complaint are CONTINUED to October 15, 2021, 9:00 a.m. in Dept. 2.

The Court notes the serious health matters alleged in the Declaration of Robert R. Eckert, Sr., filed in support of the opposition to the present motion. The parties are directed to take all reasonable steps necessary to preserve Mr. Eckert's trial testimony through an evidentiary deposition and report on such efforts at the continued hearing.

The clerk shall provide notice of this ruling to the parties forthwith. No formal order pursuant to Rule of Court 3.1312 is required.

Discover Bank v. Ron Beck

19CF12822

**MOTION TO ENTER JUDGMENT PURSUANT TO CODE OF
CIVIL PROCEDURE SECTION 664.6**

Plaintiff Discover Bank moves, pursuant to Code of Civil Procedure section 664.6, for an order entering judgment pursuant to a stipulated settlement agreement on the grounds that Defendant Ron C. Beck has defaulted on the agreement.

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6 (a).)

The parties on 11/4/19 filed a Stipulation for Entry of Judgment Pending Performance which settled all matters raised in the Complaint. Based on the evidence presented, the Court finds defendant is in default under the terms of the Settlement Agreement. (See Declaration of Jessica Garcia at ¶ 7.) Additionally, plaintiff has satisfied all of its obligation under the Settlement Agreement. (See *id.* at ¶ 8.)

Defendant failed to file any opposition to the motion.

Based on the foregoing, Plaintiff’s motion is GRANTED.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Judgment pursuant to Rule of Court 3.1312 in conformity with this ruling.